Proposed Redline

Document: **20260622T184343Z_inbound_msa.txt** · Prepared by **Harbor Point Ventures LLC** · 2026-06-22

Harbor Point Ventures LLC has reviewed the document above and proposes the following revisions. Struck text is flagged for change; each strike is keyed to a numbered revision below.

MARKED-UP DOCUMENT

MASTER SERVICES AGREEMENT

This Master Services Agreement (the "Agreement") is entered into as of the Effective Date between Northwind Software Services, Inc. ("Provider") and the counterparty client ("Client"). Provider sent this draft for Client's signature.

1. TERM. This Agreement has an initial ~~5-year term~~[R1] and renews automatically for successive one-year periods unless either party gives 90 days notice of non-renewal before the end of the then-current term. This Agreement is terminable only by Provider, for convenience, on 90 days notice; Client has no right to terminate for convenience.

2. FEES AND PAYMENT. Client shall pay all fees annually in advance. All fees are non-refundable in full, including any prepaid amounts, even upon early termination or suspension of the services. Overdue amounts accrue 5%/month late fees, compounded monthly, until paid.

3. INTELLECTUAL PROPERTY. All work product, deliverables, configurations, and Client data created, supplied, or processed under this Agreement become the ~~exclusive property~~[R2] of Provider upon creation, including any pre-existing materials or tools that Client incorporates into the deliverables.

4. INDEMNIFICATION. Client indemnifies Provider, and its officers, directors, employees, and agents, against any and all claims, damages, losses, liabilities, and expenses (including legal fees) arising out of or relating to this Agreement or the services, without limitation and regardless of fault. Provider has no corresponding indemnity obligation to Client.

5. LIMITATION OF LIABILITY. Provider's total aggregate liability under this Agreement is capped at $100, regardless of the form of action or theory of liability. Provider liability capped at $100 applies even to Provider's breach, negligence, or failure to deliver. Client waives all consequential, indirect, incidental, and punitive damages.

6. CONFIDENTIALITY. Client shall hold Provider's information in strict confidence for a period of seven (7) years. Provider's obligations with respect to Client's information are limited to using reasonable efforts for one (1) year.

7. WARRANTIES. The services are provided "AS IS" and "AS AVAILABLE." Provider disclaims all warranties, express or implied, including merchantability and fitness for a particular purpose.

8. GOVERNING LAW; DISPUTES. This Agreement is governed by the laws of the State of Provider's principal place of business, and the parties submit to the exclusive jurisdiction of the courts located there. Client waives any objection to venue and waives any right to a jury trial.

9. ASSIGNMENT. Provider may assign this Agreement freely, including to a competitor of Client. Client may not assign without Provider's prior written consent, which Provider may withhold in its sole discretion.

10. ENTIRE AGREEMENT. This Agreement constitutes the entire agreement between the parties and supersedes all prior discussions. No amendment is effective unless signed by Provider.

PROPOSED REVISIONS (3)

R1 re *"5-year term"* — **Term too long**: the "5-year term" auto-renews and is one-sided; cut it to 1 year with mutual termination for convenience.

R2 re *"exclusive property"* — **IP grab**: the assignment making all work product and Client data into "exclusive property" of the Provider must be deleted; the Client retains ownership.

R3 re *"5-year term"* — **Term and renewal**: shorten the "5-year term" to 2 years and make the auto-renewal opt-in rather than automatic.

Prepared by Harbor Point Ventures LLC for return to the counterparty. Struck text marks the clauses Harbor Point Ventures LLC proposes to revise; see the numbered revisions above.